

ALITO, J., dissenting

This Court, for its part, apparently helped to perpetuate the illusion, since it reiterated time and again what *Apodaca* had established. See *Timbs v. Indiana*, 586 U.S. 146, 150, n. 1 (2019) (*Apodaca* held “that the Sixth Amendment requires jury unanimity in federal, but not state, criminal proceedings”); *McDonald v. Chicago*, 561 U.S. 742, 766, n. 14 (2010) (Sixth Amendment “does not require a unanimous jury verdict in state criminal trials”); *United States v. Gaudin*, 515 U.S. 506, 511, n. 2 (1995) (*Apodaca* “conclude[d] that jury unanimity is not constitutionally required”); *Schad v. Arizona*, 501 U.S. 624, 634, n. 5 (1991) (plurality opinion) (“[A] state criminal defendant, at least in noncapital cases, has no federal right to a unanimous jury verdict”); *Brown v. Louisiana*, 447 U.S. 323, 330–331 (1980) (plurality opinion) (“[T]he constitutional guarantee of trial by jury” does not prescribe “the exact proportion of the jury that must concur in the verdict”); *Burch v. Louisiana*, 441 U.S. 130, 136 (1979) (*Apodaca* “conclude[d] . . . that a jury’s verdict need not be unanimous to satisfy constitutional requirements”); *Ludwig v. Massachusetts*, 427 U.S. 618, 625 (1976) (“holding” in *Apodaca* was that “the jury’s verdict need not be unanimous”); see also *Holland v. Illinois*, 493 U.S. 474, 511 (1990) (Stevens, J., dissenting) (“we have permitted nonunanimous verdicts,” citing *Apodaca*); *McKoy v. North Carolina*, 494 U.S. 433, 468 (1990) (Scalia, J., dissenting) (the Court has “approved verdicts by less than a unanimous jury,” citing *Apodaca*).

Consistent with these statements of the governing law, whenever defendants convicted by non-unanimous verdicts sought review in this Court and asked that *Apodaca* be overruled, the Court denied those requests—without a single registered dissent.¹⁰ Even the legal academy, never shy

¹⁰ See, e.g., *Magee v. Louisiana*, 585 U.S. 1024 (2018); *Sims v. Louisiana*, 584 U.S. 951 (2018); *Baumberger v. Louisiana*, 583 U.S. 950 (2017); *Jackson v. Louisiana*, 572 U.S. 1088 (2014); *McElveen v. Louisiana*, 568 U.S. 1163 (2013); *Miller v. Louisiana*, 568 U.S. 1157 (2013); *Bowen v. Oregon*, 558 U.S. 815 (2009); *Lee v. Louisiana*, 555 U.S. 823 (2008); *McIntyre v.*